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Study Notes

Public International Law in comparison to Law of India

Part- 4

UNITED NATIONS

The United Nations is an Inter-governmental organization that was established on 24th October, 1945 to establish International peace and re-affirm human rights. After World War I the League of Nations was established but it failed to prevent Word War II. World War II once again compelled the establishment of an international organization which could prevent future war and maintain peace and security. It was during World War II only that great powers had started making efforts in this direction.

➤ League of Nations

- In historical perspective, the League of Nations was the first major attempt in the creation of a permanent international political institution at the international arena.
- Being created after the First World War, it was aptly described as ***the “child of war”, with an avowed aim to save the world from further war.***
- The defined objects of the League were ***“to promote international cooperation and to achieve international peace and security”.***
- Its formation was very much inspired by the 14-point programme of the American President Wilson, which was actively supported by the Governments of Great Britain and France. The Covenant of the League of Nations (consisting of 26 articles) was adopted on April 21, 1919, and kept as a part of the Treaty of Versailles, 1919. The League of Nations was established on January 10, 1920.
- There were several drawbacks and therefore League could not stop it's more powerful members to intimidate the less powerful and smaller nations. The League was merely a mute spectator in the face of Italian invasion and conquest of Abyssinia (Ethiopia) in 1935.
- Earlier, in 1923, when Italy attacked Corfu island of Greece, and Greece raised this matter in the League, the League of Nations, instead of providing assistance to Greece to resist the invasion favoured Italy. In 1931, when Japan attacked and occupied Manchuria, the League did not take any effective action except passing a resolution on nonrecognition of such a situation. Regarding the Russian invasion of Finland and the Baltic Republics in 1939, the League remained simply a spectator without any effective action.
- These events clearly established the fact that the League was unable to accomplish its objectives of achieving international peace and security, nor could it promote international cooperation with its foreseeable consequences which resulted into the Second World War, In April 1946, it was dissolved by a resolution of its Assembly.

➤ **Origin of the UN**

- The United Nations is also the result of war, i.e., the Second World War. While the war was still continuing, attempts had started by the Allied nations to have an international organization, which should be devoid of the weaknesses of the League and should place the international peace and security on the firmer footing.
- The first step in this direction was the Declaration of St. James Palace, London of June 12, 1941, in which the exiled governments of Greece, Belgium, Czechoslovakia, Luxembourg, the Netherlands, Norway, Poland and Yugoslavia, and the representatives of Britain, Canada, Australia, New Zealand, South Africa and General de Gaulle of France participated.
- It was soon followed by the Atlantic Charter of August 14, 1941, between the British Prime Minister Winston Churchill and the President Franklin Roosevelt of the United States, in which they undertook to end Nazism and subscribed the principles of equality of nations, universal peace and collective cooperation.
- There were 26 nations, including the United States, Great Britain, Soviet Union and China which signed the United Nations Declaration on January 1, 1942, and, for the first time, used the words "United Nations". States also pledged for cooperation amongst themselves, and not to enter into treaty relationship with the enemy. It was, however, the Moscow Declaration of October 30, 1943, between the governments of the United States, Britain, Soviet Union and China that emphasized the need for establishing a world organisation based on the principle of sovereign equality of States, which should be open to all peace-loving nations and be able to maintain international peace and security.
- The Tehran Conference of December 1, 1943, between Churchill, Roosevelt and Stalin further emphasized the urgent need for the establishment of such an international organisation.
- In 1944, at Dumbarton Oaks, four powers met and draft proposals for such an organization were prepared by China, Great Britain, United States and the Soviet Union. The proposed organisation was given the name of "The United Nations", which was to have four principal organs: The General Assembly, the Security Council, the Economic and Social Council (ECOSOC) and the Secretariat. However, there were no clear-cut proposals on the future of the Permanent Court of International Justice, the mandate system of the League of Nations (Art. 22), and the initial membership of the organisation.
- The Yalta Conference of February 11, 1945, between Great Britain, United States and the Soviet Union finally decided to convene a general conference of about 50 nations to consider the constitution of the proposed world organisation based on the Dumbarton Oaks Proposal, to be held on April 25, 1945.

At Yalta, the voting procedure and arrangements of the proposed Security Council was also agreed between the three participating nations.

- The final shape to the proposed Charter was given at the San Francisco Conference, attended by 51 nations, and held from April 25 to June 26, 1945. The Conference succeeded in adopting the Charter of the United Nations with 111 articles, along with the Statute of the ICJ, though serious differences arose over the voting procedure in the Security Council and the "veto" power of the permanent members. The Dumbarton Oaks proposals were adopted on this aspect after making certain significant changes. The Charter was signed on June 26, 1945.

➤ **Organs of the UN**

General Assembly

- 193 members, one vote each, elects non-permanent members, Appoints-members of ECOSOC, Secretary general and Judges of ICJ

Security Council

- to maintain International peace and Security. 15 members- 5 permanent and 10 non-permanent for 2 years. Veto power with non-permanent members.

International Court of Justice

- Principal Judicial organ, All members of UN are parties to the Statute of ICJ, Contentious (consent) jurisdiction of disputes between states approaching voluntary and also legal opinion. 15 judges elected for 9 years by General assembly and Security Council. Located at Hague, judgment on majority.

Economic and Social Council

- 54 members elected by General Assembly for 3 years. To promote cooperation between States as regards economic and social matters. To make recommendations and formulate policy.

Secretariat

- Headquarters at New York, it is the administrative organ. This organ is the policy maker. The Secretary General is Head and appointed by General Assembly on recommendations of Security Council.

Trusteeship Council

- It is suspended as all countries have become independent. It was suspended in 1994 when last trust- territory Palau became independent.

- The United Nations has six principal organs with their well-defined powers and functions. These organs, as listed in Art. 7 of the Charter.
- Other subsidiary organs “as may be found necessary may be established in accordance with the Charter”

OUTER SPACE

- The launching of the first artificial satellite in October 1957 by the Soviet Union opened up a new vista of outer space. This was soon followed by space activities on a constantly increasing scale. There has been orbiting of the earth through manned and unmanned satellites of varying weight and orbital ranges, launched for different functional purposes, viz., for telecommunication, remote sensing of the earth resources, earth survey, meteorology, monitoring of pollution, missile detection, espionage, etc. These activities are being carried out without any effective protest from the territorial States. But they have raised new questions about the upward extent of the State's sovereignty, which is no more considered to be indeterminate and thereby put a strong challenge to the doctrine of *cujus est solum*. Further, the use of air space of a State without its authorisation for launching a satellite to orbit the earth has been accepted as a rule, more in its acquiescence, leading to the formation of a customary rule of international law.
- The boundary between airspace and outer space has so far remained undefined and for that matter even the term ‘outer space’ itself. But States, motivated by their security interests, agree in principle that there should be some upper limit of State sovereignty in the air space, although there has not been any consensus as to the precise figure for this height. The suggested figures range from 20 miles to 10,000 miles (at the height of which traces of air can be found), based on the different theories advanced with respect to fixing the outer limit of the outer space.⁹⁰ But none of the theories advanced has got the general approval. Because of its controversial nature, the question of delimitation of the boundary was not dealt with by the United Nations General Assembly at the time of the adoption of the Outer Space Treaty, 1967. Even the Committee on the Peaceful Uses of Outer Space (COPUOS) has failed to resolve this issue.

➤ Outer Space Treaty

- The Outer Space Treaty establishes the legal regime of outer space and lays down the premise of other conventions concluded so far in this area. It is the constitution of the outer space regime.

- The Treaty clearly leaves outer space outside the sovereignty of States and declares that the area of the outer space “is not subject to national expropriation” (Art. 2).

On the other hand, the outer space, including moon and other celestial bodies, are subject to international law and the United Nations Charter, and are **“free for exploration and use by all States ... on a basis of equality and in accordance with international law”**.

- Such exploration and use are to be carried out for the benefit and in the interests of all countries (Art. 1). In order to clarify the ambit of Art.1, the General Assembly in June 1996 adopted a declaration on international cooperation in the exploration and use of outer space for the benefit and in the interests of all States, taking into account the particular needs of developing countries.

➤ **The Moon Agreement**

- The United Nations General Assembly on December 5, 1979 adopted the Agreement Governing the Activities of States on the Moon and Celestial Bodies (Moon Treaty) to regulate the activities of States concerning moon and other celestial bodies in a more precise manner and to clarify the provisions of the Outer Space Treaty in this regard.
- The Treaty's main concern is the exploration and exploitation of the natural resources of the moon and celestial bodies.
- It proclaims that “the moon” is not subject to national appropriation by any claim of sovereignty, by means of use or occupation, or by any other means” States parties have the right to explore and use the moon without discrimination of any kind, on a basis of equality and in accordance with international law and the provisions of the Agreement.
- It declares that the moon and its natural resources are **the “common heritage of mankind”** and for which States parties **“undertake to establish an international regime, including appropriate procedures, to govern the exploitation of the natural resources of the moon as such exploitation is about to become feasible”**

LAW OF SEA

- State's sovereignty is not confined only to land territory or airspace but extends to territorial waters, internal and historic waters.
- Territorial waters or maritime belt establishes the limit of a State's sovereignty over its territory and the airspace above it. But whereas the territorial sea is subject to the right of innocent passage of foreign ships, the internal waters are not subject to this limitation.
- The State also has certain jurisdictional rights in contiguous zone and enjoys exclusive rights of exploitation with regard to Exclusive Economic Zone (EEZ) and continental shelf.

➤ **Internal Waters**

- The national or internal waters of a State flowing within its boundaries, i.e., rivers, lakes, canals, straits, bays, estuaries and other enclosed areas fall entirely within the sovereignty of a State as well as waters on the landward side of the baseline of the territorial sea.
- These waters are part of a State's land territory. But where these waters make boundaries with opposite States, the problem is to define the boundary and decide about the extent of a State's sovereignty.
- Boundaries are the most significant external manifestation of a State's territorial sovereignty, which separate the territory of one State from that of another, and they constitute part of a State's title to territory.
- Rivers quite often constitute the natural boundary between opposite or adjoining States. Mountains, seashores, forests, lakes, bays and deserts are other natural boundaries.
- On the other hand, "artificial" boundaries consist of either sign posts erected to indicate the boundary or of parallels of longitude or latitude.

➤ **Indian position**

- The Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act, 1976 (Maritime Zones Act, 1976) proclaims that the sovereignty of India extends, and has always extended to the historic waters of India and to the seabed and sub-soil underlying, and the airspace over such waters.
- The Central Government is empowered to specify the limits of historic waters adjacent to its land territory by notifying in the Official Gazette. In accordance with this provision, the Central Government on January 15, 1977, notified the limits of the historic waters of India in Palk Strait and Bay, and in Gulf of Mannar.
- Further, the historic waters of India in Palk Bay and Palk Strait areas of the sea are internal waters of India; in the Gulf of Mannar area, the historic waters beyond the appropriate baseline mentioned in Section 3(2) of the Maritime Zones Act have the status of territorial waters of India.

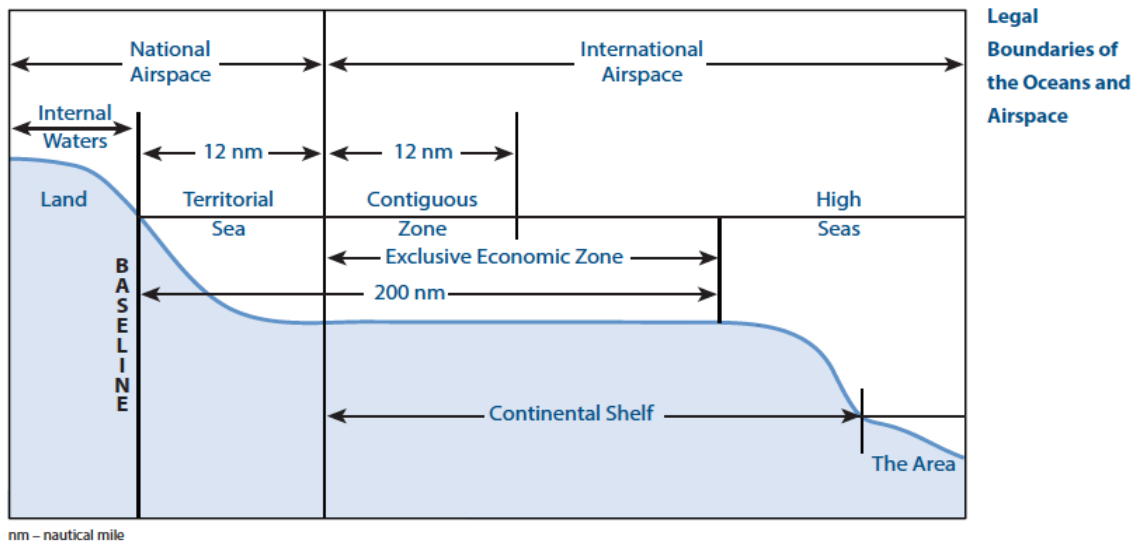
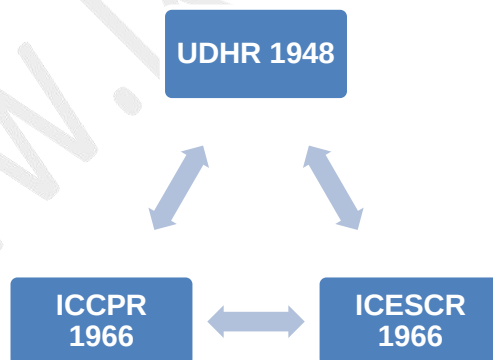


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HUMAN RIGHTS

In 1946 the United Nations Commission of Human Rights was constituted to form an International Bill of Rights; this was done with the aim to enforce Human Rights globally and give the Human Rights a global recognition. The drafting committee consisted of eight countries and was headed by Eleanor Roosevelt.

The International Bills of Rights consists of:



- The UDHR consists of 30 articles. It is a declaratory instrument that covers- civil, political, economic, social and cultural rights. All the rights in UDHR have been covered under Part III and Part IV of the Indian Constitution.
- **Keshavanda Bharti Vs. State of Kerala 1973-**
In this landmark case, the Hon'ble Supreme Court has observed that the Universal Declaration of Human Rights may not be legally binding instrument but India being a signatory member has understood the nature and importance of Human Rights at the time when Constitution was drafted.
- **Important rights mentioned under the UDHR-**

